

25NNCV06801 25NNCV06801

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 25NNCV06801 Hearing Date: August 7, 2026 Dept: D

TENTATIVE RULING

Calendar: 2

Date: August 7, 2026

Case No: 25NNCV06801 Trial Date: November 23, 2026

Case Name: Bandarian v. Montrose Shopping Park Association, et al.

DEMURRER

[CCP § 430.10 subd. (c)]

Moving Party: Defendant, Montrose Shopping Park Association

Responding Party: Plaintiff, Varooj Bandarian

RELIEF REQUESTED:

Sustain demurrer to the FAC.

CAUSES OF ACTION: from FAC

1) Negligence

REQUEST FOR JUDICIAL NOTICE:

The Court may take judicial notice of “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.” (Evidence Code, § 452, subd. (d).)

Pursuant to Montrose Shopping Park Association's request, the Court takes judicial notice of the following: (1) Plaintiff's Complaint in L.A. Superior Court Case No. 24NNCV04441; (2) February 7, 2025, Request for Dismissal filed in Case No. 24NNCV04441; (3) Plaintiff's Notice of Related Cases; and (4) December 2, 2025, Minute Order.

SUMMARY OF FACTS:

Varooj Bandarian (“Plaintiff”) alleges that on October 13, 2023, while walking northbound on the sidewalk of Ocean View Boulevard in front of the property located at 2301 Honolulu Avenue, in the City of Montrose, he tripped and fell as a result of a concealed and defective/bent/warped garden edging fence. Plaintiff alleges that he suffered significant injuries, including but not limited to, his head, ear, low back, groin, left leg/knee/foot, neck, and hip. The FAC alleges that Montrose Shopping Park Association (“MSPA”) owned, controlled, operated, designed, built, constructed, maintained, managed, supervised, inspected and/or developed the Vietnam War Memorial and the adjacent sidewalk area where Plaintiff fell.

ANALYSIS:

A defendant can file a special demurrer to a complaint under Code of Civil Procedure section 430.10, subdivision (c) on the basis that there is another action pending between the same parties on the same cause of action. (CCP, § 430.10, subd. (c); see *Bescos v. Bank of Am.* (2003) 105 Cal.App.4th 378, 396-97.) A demurrer filed on this ground is sometimes referred to as a plea in abatement. (See *Plant Insulation Co. v. Fibreboard Corp.* (1992) 224 Cal.App.3d 781, 787.) If a demurrer is sustained on this ground, the second action should be stayed, but not dismissed, pending the termination of the first action. (*Id.* at p. 788.) To succeed on a plea in abatement demurrer, the movant must show three things: (1) there are multiple actions pending in California courts, (*Leadford v. Leadford* (1992) 6 Cal.App.4th 571, 574); (2) the parties in both actions are the same and stand in the same relative position as plaintiff and defendant, (see *Plant Insulation*, *supra*, 224 Cal.App.3d at p. 787); and (3) both actions are based on substantially the same action, i.e., judgment in the first action would bar recovery in the second action, (*Lord v. Garland* (1946) 27 Cal.2d 840, 848.)

MSPA demurs to the FAC on the grounds that there is another related action pending between the parties relating to the same injury.

The Court has since ordered the two related cases to be consolidated. Accordingly, as the two suits have merged into a single proceeding, there is no longer a separately pending first action to justify suspending the second. The demurrer is thus DENIED as MOOT.

RULING:

Defendant Montrose Shopping Park Association's Demurrer is DENIED as MOOT.

Answer to be filed within 10 days.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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